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CASE NAME: Green v. Oakmont Management Group,
LLC, et al.

CASE NO.: 25SMCV06694

MOTION: Petition/Motion to Compel
Arbitration

HEARING DATE: 9/17/2026

LEGAL STANDARD

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 8-9; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act ("CAA") or the Federal Arbitration Act ("FAA"), courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (Moncharsh, supra, 3 Cal.4th at 9; Comedy Club, Inc. v. Improv West Assocs. (9th Cir. 2009) 553 F.3d 1277, 1284; see also Engalla v. Permanente Med. Grp., Inc. (1997) 15 Cal.4th 951, 971-972 ["California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability [citation] and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general"].) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.' " (Higgins

v. Superior Crout (2006) 140 Cal.App.4th 1238, 1247.)

“Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration if the court determines that an agreement to arbitrate the controversy exists.” (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59, quotations omitted.) Accordingly, “when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, “a party seeking to enforce an arbitration agreement must show the agreement’s terms are sufficiently definite to enable the court to know what it is to enforce.” (Ibid. [internal citations omitted].) “Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed.” (Ibid.) An arbitration agreement “must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful.” (Civ. Code, § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code, § 1368.) If uncertainty exists, “the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist.” (Civ. Code, § 1654.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) It would then be plaintiff’s burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (See Ibid.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Ibid.)

As with any contract, mutual assent or consent is necessary for the formation of a valid arbitration agreement. (Civ. Code, §§ 1550, 1565.) “Consent is not mutual, unless the parties all agree upon the same thing in the same sense.” (Civ. Code, § 1580.) The moving party bears the initial burden of showing the existence of an agreement to arbitrate by a preponderance of the evidence. (Mitri v. Arnel Mgmt. Co. (2007) 157 Cal.App.4th 1164, 1169

["Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence."].)

ANALYSIS

Defendants Welltower Inc., Oakmont

Management Group LLC, and Ivy Living LLC move to compel Plaintiff Ora Green's complaint to arbitration.

Valid Arbitration Agreement

Defendants assert that Plaintiff signed an arbitration agreement covering her claims and the Court should order these claims to arbitration. Defendants provide a declaration from its Executive director at its Assisted Living Memory Care facility stating that Plaintiff and Plaintiff's granddaughter, Jaquita Ta'le, signed the Residence and Services Agreement with an arbitration provision. (Thorton Decl., ¶ 2, Ex. 2.) Section 21 of the Agreement provides, in relevant part:

"...[T]he parties agree that if informal resolution is not possible, any and all claims or disputes arising from or related to this Agreement or to your rights obligations, care or services at the community shall be resolved by submission to neutral, binding arbitration in accordance with the Federal Arbitration Act. This agreement to arbitrate applies regardless of whether the claim is made against us, you, or any other individual or entity, and it includes, without limitation, personal injury and wrongful death claims...."

The arbitration agreement also contains a clear and unmistakable delegation provision. (Thorton Decl., ¶ 2, Ex. 2, at ¶ 21.b.) Parties may agree to arbitrate gateway questions of arbitrability such as the enforceability of an arbitration agreement and whether claims are covered by the arbitration agreement. (Rent-A-Center, West, Inc. v. Jackson (2010) 561 U.S. 63, 68-69.) To establish this exception, it must be shown by clear and unmistakable evidence that the parties intended to delegate the issue to the arbitrator. (First Options of Chicago, Inc. v. Kaplan (1995) 514 U.S. 938, 944.) The delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (Tiri v. Lucky Changes, Inc. (2014) 226

Cal.App.4th 231, 242.) Delegation clauses are treated as separate agreements from the underlying arbitration agreement for purposes of enforcement. (Malone v. Superior Court, (2014) 226 Cal.App.4th 1551, 1559-60.) Where the parties clearly and unmistakably incorporate a delegation clause, the parties clearly evidence their intention to accord the arbitrator the authority to determine issues of arbitrability. (Rodriguez v. American Technologies, Inc. (2006) 136 Cal.App.4th 1110, 1123.)

In opposition, Plaintiff does not dispute that she and her granddaughter signed the agreement. Plaintiff raises several defenses to the arbitration agreement, including her capacity to contract, her granddaughter's authority to sign on her behalf, and unconscionability. As discussed below, Plaintiff does not show any defense to the delegation clause aside from the capacity issue.

Capacity

Plaintiff claims that she lacked capacity at the time that she agreed to arbitration due to her diagnosed Alzheimer's disease and associated dementia. "All persons are capable of contracting, except minors, persons of unsound mind, and persons deprived of civil rights." (Civ. Code § 1556.) The lack of capacity to contract are governed by Civ. Code sections 38-39 and Prob. Code sections 810-812. There is a rebuttable presumption affecting the burden of proof that all persons have the capacity to make decisions and to be responsible for their acts or decisions. (Prob. Code § 810(a).)

Contracts created by persons of unsound mind, who are not entirely without understanding, are voidable. (Civ. Code § 39.) Civil Code section 39 provides in full:

(a) A

conveyance or other contract of a person of unsound mind, but not entirely without understanding, made before the incapacity of the person has been judicially determined, is subject to rescission, as provided in Chapter 2 (commencing with Section 1688) of Title 5 of Part 2 of Division 3.

(b) A

rebuttable presumption affecting the burden of proof that a person is of unsound mind shall exist for purposes of this section if the person is substantially unable to manage his or her own financial resources or resist

fraud or undue influence. Substantial inability may not be proved solely by isolated incidents of negligence or improvidence.”

Generally,

the test for mental capacity set forth in section 39 is whether the person said to have entered a contract understood the nature, purpose, and effect of what they did. (*Smalley v. Baker* (1968) 262 Cal.App.2d 824, 832.)

A

determination that a person lacked the capacity to contract must be “supported by evidence of a deficit in at least one of the following mental functions, subject to subdivision (b), and evidence of a correlation between the deficit or deficits and the decision or acts in question.” (Prob. Code, § 811(a).) The four functions include, alertness and attention, information processing, thought processes, and ability to modulate mood and affect. (*Id.*) A deficit counts only where it “significantly impairs the person’s ability to understand and appreciate the consequences of his or her actions with regard to the type of act or decision in question.” (Prob. Code, § 811(b).) A person lacks capacity unless he can communicate the decision and “understand and appreciate, to the extent relevant,” the rights and responsibilities affected, the probable consequences, and the significant risks, benefits, and reasonable alternatives involved. (Prob. Code, § 812.) Notably, the mere diagnosis of a mental disorder does not by itself support a determination that a person is of unsound mind. (Prob. Code, § 811(d).) Once the presumption of lack of capacity is established, the party claiming capacity must prove that a person unable to manage his financial resources or resist fraud or undue influence was “nevertheless still capable of contracting being of sound mind as defined by Probate Code section 811.” (*In re Marriage of Greenway* (2013) 217 Cal.App.4th 628, 642-643.) Probate Code sections 811 and 812 provide the baseline for capacity to contract, and Civil Code section 39(b) provides “more specific guidelines for determining the capacity to contract.” (*Id.* at 642.)

Plaintiff’s daughter and granddaughter present evidence demonstrating that Plaintiff’s Alzheimer’s disease and associated dementia significantly affected her ability to understand and appreciate the consequences of her actions regarding the subject contract. It is undisputed that Plaintiff was diagnosed with Alzheimer’s on August 31, 2023. (Ta’le-Sekani Decl., ¶¶ 2-4; Ta’le Decl., ¶¶ 2-4.) Plaintiff had cognitive decline as her memory, thinking skills, and the ability to carry out simple tasks were noticeably diminishing.

(Id.) During her lucid moments, Plaintiff confided that she did not know what was going on with her memory. (Id., ¶ 4.) Plaintiff also showed poor financial judgment. Sometime in 2022 or early 2023, employees at her banking institution persuaded her to place a substantial sum and significant portion of her savings into a certificate of deposit for a set term. (Ta'le Decl., ¶ 5.) The family became concerned over her ability to manage her bills. (Id.) Plaintiff became obsessed with her money and sought to take out large amounts of cash to have on hand, only to misplace the cash in her home, and began missing regular monthly bill payments. (Id.) Both Ta'le's father and Ta'le were added to all of Plaintiff's banking and investment accounts to allow them to manage her financial resources, preserve her financial stability, and ensure all her bills were timely paid. (Id.) Plaintiff had Home Aide daily to assist her with daily personal care and living activities, and to monitor her so that she did not wander. (Id., ¶ 6.)

The family began looking into assisted living in early 2024 due to Plaintiff's gradual decline in both physical health and memory, which made independent living dangerous for her. (Id., ¶ 7.) They visited several facilities but Plaintiff was unable to secure placement or was not satisfied with the facilities for various reasons. (Id.) In July 2024, Plaintiff's children began staying overnight with her, as her Alzheimer's and associated dementia were worsening and she could not be left alone. (Id., ¶ 8.) She began to forget who her children were and would often get agitated. (Id.) She also would try to leave her house at odd hours of the night to wander the streets wearing her mink coat. (Id.) She began to believe that her home was assisted living. (Id.) By December 2024, Plaintiff often could not distinguish family members from strangers and was unaware of her surroundings. (Id., ¶ 9.) After a December 2024 wandering incident which required police assistance, it was clear that Plaintiff required aid, assistance, and supervision at a level that her family could not provide. (Id.) Defendants assessed Plaintiff and determined that she needed to be placed in the Memory Care Program, which provides specialized care for residents with Alzheimer's, dementia, and other cognitive impairments. (Id., ¶ 10.) Ta'le instructed Plaintiff where to sign and she signed the agreement as indicated. (Id., ¶ 13.) However, Ta'le claims that Plaintiff was not cognizant of her surroundings, nor could she meaningfully read or understand the terms of the agreement and attached addenda, and that it was "impossible" for Plaintiff to have understood what an arbitration agreement was, much less what she was signing and that by signing, she would be giving up her right to a jury trial. (Id.) Ta'le only directed her to sign because she felt pressured to do so under the circumstances and so that Plaintiff would not lose her spot at Ivy

Park. (Id.)

The weight of the evidence demonstrates that Plaintiff lacked the ability to understand and appreciate the consequences of her actions regarding the arbitration agreement. Aside from the undisputed diagnosis of Alzheimer's, and the worsening dementia throughout 2024, Ta'le provides specific testimony that, at the time Plaintiff signed the contract, Plaintiff could not understand her surroundings or meaningfully understand the terms of the agreement. Plaintiff therefore raises a presumption that she lacked capacity to contract at the relevant time. Defendant does not show with any specific evidence that, despite her mental deficit, Plaintiff was nevertheless still capable of contracting being of sound mind. (Prob. Code § 811.) In reply, Defendant fails to submit substantial authenticated evidence that she could communicate the decision, or understand /appreciate the rights and responsibilities, the probable consequences, or the risks, benefits, and reasonable alternatives involved in the decision.

Ta'le's
Agency

Additionally, Defendant fails to demonstrate that Ta'le was Plaintiff's actual or ostensible agent. When written authorization is absent, agency relationship may arise by oral consent or by implication from the conduct of the parties. (*Flores v. Evergreen at San Diego, LLC* (2007) 148 Cal.App.4th 581, 587-88.) "Agency can be founded on ostensible authority, that is, some intentional conduct or neglect on the part of the alleged principal creating a belief in the minds of third persons that an agency exists, and a reasonable reliance thereon by such third persons." (Ibid.) "Ostensible agency cannot be established by the representations or conduct of the purported agent; the statements or acts of the principal must be such as to cause the third party to believe that the agency exists. (*Milrot v. Stamper Medical Corp.* (1996) 44 Cal.App.4th 182, 187; see also *Young v. Horizon West, Inc.* (2013) 220 Cal.App.4th 1122 [no direct evidence that principal's conduct demonstrated ostensible authority to bind him]; *Pagarigan v. Libby Care Center, Inc.* (2002) 99 Cal.App.4th 298 [finding no agency where patient, who was "comatose and mentally incompetent," had done nothing that "caused [the defendants] to believe [that] either of her daughters was authorized to act as her agent in any capacity"].) Defendant submits no evidence that Plaintiff indicated by any means that Ta'le was her agent. Defendant's evidence is silent on this point. (Thorton Decl., ¶¶ 1-2; Fodrini

Decl., ¶¶ 1-4.) Moreover, Plaintiff's evidence denies this position. (Ta'le Decl., ¶ 15.)

Conclusion

Defendant fails to show that Plaintiff had the capacity to contract, or that Ta'le had ostensible authority to bind Plaintiff. Thus, the arbitration agreement is voidable. Thus, Plaintiff cannot be compelled to arbitration. Accordingly, the motion is DENIED.